

M/S Maya Foods v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench (Chief Justice's Court) · 3 August 2023 · 2023:AHC:155513-DB · Writ - C No. 25667 of 2023 · **Writ disposed; petitioner permitted to apply under Section 6.5 within 15 days, with orders expected in one month.**

HEADNOTE

Writ petition disposed of because the petitioners have an alternative remedy of an application under Section 6.5 of the U.P. Electricity Supply Code, 2005. The petitioner may approach Respondent No. 2 within 15 days, and Respondent No. 2 is expected to pass appropriate orders within one month of service of a certified copy. Merits were not examined.

FACTUAL SUMMARY

M/S Maya Foods and another petitioned the Allahabad High Court against Dakshinanchal Vidyut Vitran Nigam Ltd. and another. The order does not recite the underlying electricity grievance. Counsel for the petitioners said the petitioner had been running from pillar to post for many years and that the authorities were still not deciding the case. Counsel for the electricity department stated that if the petitioner approached Respondent No. 2, appropriate orders would be passed on the application.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Alternative remedy by application under Supply Code Section 6.5

HOLDING

On the facts narrated in the writ petition, the petitioners have an alternative remedy of filing an application under Section 6.5 of the U.P. Electricity Supply Code, 2005. The writ is disposed of by permitting the petitioner to approach Respondent No. 2 within 15 days; Respondent No. 2 is expected to pass appropriate orders on that application within one month of service of a certified copy of the order. ¶ 1

PRINCIPLE TAGS

article-226-alternate-remedy-up-supply-code-6.5 The Division Bench declined to decide the grievance in writ and disposed of the petition by sending the petitioner to Respondent No. 2 under Section 6.5, with a 15-day approach window and an expectation of orders within one month. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONERS' ELECTRICITY GRIEVANCE AGAINST THE LICENSEE

Left to Respondent No. 2 to pass appropriate orders on an application under Section 6.5; the Court neither granted nor refused the underlying relief. ¶ 1